

Civil Court of the City of New York, County of Bronx

Atlas Bay Funding LLC,
Plaintiff,
- *against* -
Maria Delarmo,
Defendant.

INDEX No. CV-025236-25/BX

AFFIDAVIT IN SUPPORT OF ORDER TO SHOW
CAUSE

This draft is written to be attached to the Order to Show Cause form the court provides. It does not replace that form. Every paragraph is built from details the person named above confirmed, and from the comparison set out in the annexed packet. Read it, correct anything that is not right, and sign it only in front of a notary.

STATE OF NEW YORK, COUNTY OF _____, ss.:

Maria Delarmo, being duly sworn, deposes and says:

1. I am Maria Delarmo, the defendant in this action. I reside at 1275 Grand Concourse, Apt 4B, Bronx, NY 10452. I make this affidavit in support of my application to vacate the default judgment entered against me.
2. An affidavit of service has been filed in this action. It states that service was made upon me by T. Ockham-Doyle on June 12, 2025 at 7:42 PM, at 2100 WHITE PLAINS ROAD, Bronx, NY 10462, by delivery to a person of suitable age and discretion, and mailing, under CPLR 308(2). A copy is annexed as Exhibit A.
3. I was not served with the summons and complaint in this action. No papers were delivered to me on June 12, 2025, and I did not learn of this action until long after that date.
4. 2100 WHITE PLAINS ROAD, Bronx, NY 10462, the address at which service is claimed, was not my dwelling place, my usual place of abode or my place of business on that date.
5. I keep a location history. The records I rely on below are recorded stays in one place. They are annexed as part of Exhibit B, in full for the hours around the time sworn to.
6. My location history records me in one place from 8:00 AM to 8:00 PM on June 12, 2025, which includes 7:42 PM, the time of the service sworn to. That place is 10.6 km from 2100 WHITE PLAINS ROAD, Bronx, NY 10462.
7. The affidavit describes the person who accepted the papers as male, aged 56 to 66 and 5'11" to 6'3". That is not a description of me, and it is not a description of anyone else living at that address.

8. The comparison of my location records with the affidavit of service, the distances and times relied on above, and the method by which they were calculated, are set out in the Evidence Packet annexed as Exhibit B.
9. On these facts the court did not acquire personal jurisdiction over me, and the judgment entered against me should be vacated under CPLR 5015(a)(4).
10. In the alternative, I was served, if at all, by delivery to a person of suitable age and discretion, and mailing, under CPLR 308(2), and not by personal delivery. I did not personally receive notice of this action in time to defend it. I have a meritorious defence to this action: I never opened an account with this company. I therefore ask the court to allow me to defend under CPLR 317.
11. That application is made within the time allowed, which runs to March 14, 2027.
12. Because the facts of service are disputed, I respectfully request a traverse hearing at which the process server may be examined.
13. I respectfully request that enforcement of the judgment, including any restraint on my bank account or wages, be stayed while this application is decided.
14. A process server licensed in New York City must carry a device that electronically records the location, date and time of every service and every attempt. I respectfully request that the plaintiff be directed to produce that record for the service and attempts described in the affidavit of service.

WHEREFORE, I respectfully request an order vacating the judgment entered against me, staying its enforcement in the meantime, and granting such other relief as the court finds just.

EXHIBITS

EXHIBIT A The affidavit of service filed in this action.

EXHIBIT B The Evidence Packet: the location records relied on above, and how they were compared.

Signature of defendant
Maria Delarmo

Sworn to before me this _____ day of _____, 20____.

Notary Public